Confidential

Service Level Agreement (SLA)

WestMetro e-Invoicing Middleware – Standard Version

("Middleware Standard" or "Middleware")

Between

- **WestMetro Limited**, a company incorporated under the laws of the Federal Republic of Nigeria, with its registered office at ___ (hereinafter referred to as **"WestMetro"** or the **"Service Provider"**); and
- **RT Briscoe Nigeria Plc**, with its registered office at ___ (hereinafter referred to as **"Briscoe"** or the **"Client"**).

WestMetro and Briscoe are hereinafter collectively referred to as the **"Parties"** and individually as a **"Party"**.

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1. Purpose and Background

1.1 This Service Level Agreement ("**SLA**") sets out the service commitments, performance standards, responsibilities, and support terms under which WestMetro shall provide the **WestMetro e-Invoicing Middleware – Standard Version** ("**Middleware Standard**" or the "**Middleware**") to Briscoe.

1.2 The Middleware facilitates **integration between Briscoe's internal systems and the Federal Inland Revenue Service (FIRS) e-Invoicing platform**, including but not limited to:

- Preparation and transformation of invoice-related data into FIRS-compliant formats;
- Submission of transactions to FIRS;
- Handling of FIRS responses and status updates.

1.3 WestMetro is responsible for the **Data Readiness and Enablement phase**, as further defined in this SLA, while Briscoe is responsible for **provisioning and maintaining the cloud or on-premise server infrastructure** on which the Middleware will be hosted.

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2. Definitions

For the purpose of this SLA:

- **"Application" / "Middleware"** means the WestMetro e-Invoicing Middleware – Standard Version deployed in Briscoe's environment.
- **"Availability"** means the ability of the Middleware to perform its core functions, excluding Excluded Downtime as defined in this SLA.
- **"Business Day"** means any day other than Saturdays, Sundays, and public holidays in Nigeria.
- **"Business Hours"** means 9:00 a.m. to 5:00 p.m. (WAT) on Business Days.
- **"Incident"** means any unplanned interruption or reduction in the quality of the Middleware's services.
- **"Data Readiness and Enablement"** means the activities carried out to prepare, map, and validate Briscoe's data to work correctly with the Middleware and FIRS specifications.
- **"Production Environment"** means the live environment used for actual business operations.

Payment-related definitions:

- **"Mobilization Fee"** means the initial 60% (sixty per cent) tranche of the total professional fees, being **₦5,100,000** (five million, one hundred thousand naira only), exclusive of VAT.
- **"Mobilization Date"** means the date on which the Mobilization Fee is received by WestMetro in **cleared funds**.

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3. Scope of Services

3.1 **Implementation & Configuration**

WestMetro shall:

a. Install and configure the Middleware on infrastructure provided by Briscoe (cloud or on-premise), within mutually agreed technical parameters.
b. Configure core integrations between Briscoe's systems (e.g., ERP, billing systems) and the Middleware, provided necessary access and documentation are made available by Briscoe.
c. Support initial connectivity tests to the FIRS e-Invoicing platform.

3.2 **Data Readiness and Enablement**

WestMetro shall:
a. Work with Briscoe to understand existing invoice data structures and outputs.
b. Assist in **mapping** Briscoe's invoice data to the Middleware's internal data model and FIRS requirements.
c. Provide guidance on the **sample invoices / data sets** needed for mapping and testing.
d. Support limited iterations of mapping adjustments, as defined in the commercial proposal/work order.

> ***Clarification:*** *WestMetro provides enablement services and guidance, but* ***Briscoe remains fully responsible for data accuracy, completeness, and internal controls*** *over all invoice information.*

3.3 **Operational Support & Maintenance**

WestMetro shall:

a. Provide ongoing support for the Middleware in line with the service levels defined in this SLA.
b. Release bug fixes and minor enhancements related to compliance and core functionality within reasonable timeframes.
c. Provide guidance for deploying updates to the Briscoe-hosted environment (remote assistance).

3.4 **Exclusions**

The following are **not** included unless separately agreed in writing:

- Development or licensing of Briscoe's ERP or third-party systems;
- Custom reporting beyond standard Middleware outputs;
- Non-standard integrations or bespoke development outside the agreed scope;
- Any network, OS, database, or infrastructure administration tasks that fall under Briscoe's responsibility.

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4. Infrastructure Responsibilities

4.1 **Briscoe Responsibilities**

Briscoe shall:

a. Provision and maintain the **cloud or on-premise server infrastructure** required to host the Middleware, including operating system, network, storage, and security controls.
b. Ensure that the infrastructure meets the **minimum technical requirements** provided by WestMetro (CPU, RAM, disk, network connectivity, OS version, etc.).
c. Provide secure remote access for WestMetro (e.g., VPN, RDP, SSH or agreed tools) for implementation, support, and troubleshooting activities.
d. Maintain adequate backups, disaster recovery procedures, and high-availability configurations, as applicable.

4.2 **WestMetro Responsibilities**

WestMetro shall:

a. Advise Briscoe on suitable infrastructure sizing based on agreed volumes and performance expectations.
b. Assist in deploying and configuring the Middleware on the Briscoe-provided infrastructure.
c. Support Briscoe's technical teams with installation manuals, release notes, and recommended deployment procedures.

> ***Important:*** *The* ***overall uptime of the environment*** *depends on the stability and availability of Briscoe's infrastructure. WestMetro's obligations apply to the* ***Middleware application layer****, and do not extend to hardware/network/data centre failures under Briscoe's control or that of its hosting providers.*

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5. Fees and Payment

5.1 **Total Professional Fees**

The total professional fees payable by Briscoe to WestMetro under this Agreement shall be **₦8,500,000** (eight million, five hundred thousand naira only), exclusive of VAT and any applicable statutory taxes.

5.2 **Payment Milestones**

Unless otherwise agreed in writing, the fees shall be payable in the following tranches, each **exclusive of VAT**:

a. **Mobilization Fee – 60%**

- **₦5,100,000** (five million, one hundred thousand naira only), invoiced upon contract signature.

b. **UAT Milestone – 25%**

- **₦2,125,000** (two million, one hundred and twenty-five thousand naira only), invoiced upon successful completion of User Acceptance Testing as mutually confirmed in writing by the Parties.

c. **Go-Live Milestone – 15%**

- **₦1,275,000** (one million, two hundred and seventy-five thousand naira only), invoiced upon Go-Live of the Middleware in the Production Environment.

5.3 **VAT**

All amounts stated in this Agreement are exclusive of VAT. VAT shall be added to each invoice at the prevailing rate and shall be payable by Briscoe together with the underlying fee.

5.4 **Payment Terms**

Unless otherwise agreed in the commercial agreement or on the face of the invoice, all invoices issued under this Section 5 shall be payable within **thirty (30) days** of the invoice date.

For the avoidance of doubt, **all project timelines and milestones remain dependent on the actual Mobilization Date**, as defined in Section 6.

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6. Project Timelines and Dependency on Mobilization

6.1 **Dependency on Mobilization Fee**

The Parties acknowledge and agree that all implementation and delivery timelines for the services under this Agreement are expressly **dependent on the timely payment of the Mobilization Fee**.

6.2 **Calculation of Timelines**

Unless otherwise stated in an agreed Project Plan, all milestone dates and indicative durations (including, without limitation, Data Readiness and Enablement, integration work, UAT preparation, and Go-Live) shall be calculated **from the Mobilization Date**, and **not** from the date of signature of this Agreement.

6.3 **Automatic Shift of Timelines**

If payment of the Mobilization Fee is delayed for any reason, all corresponding project timelines and milestones shall automatically shift on a **day-for-day basis** by the number of days of such delay. WestMetro shall not be responsible for any impact on Briscoe's internal deadlines, regulatory timelines, or project dependencies arising from such delay.

6.4 **No Breach for Payment-Induced Delays**

Any failure by WestMetro to meet target dates or milestones that is directly or indirectly attributable to:

- (i) delay in payment of the Mobilization Fee; or
- (ii) subsequent failure by Briscoe to provide information, access, or resources reasonably required,

shall **not** constitute a breach of this SLA and shall not give rise to any service credits, penalties, or other remedies against WestMetro.

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7. Service Levels and Availability

7.1 **Target Application Availability**

Subject to the exclusions below, WestMetro will use commercially reasonable efforts to ensure that the Middleware is **Available at least 98.5% of the time per calendar month** in the Production Environment.

7.2 **Excluded Downtime**

The following shall be excluded from the availability calculation:
a. Scheduled maintenance windows notified to Briscoe at least 24 hours in advance;
b. Emergency maintenance required to address critical vulnerabilities or regulatory changes, provided WestMetro uses reasonable efforts to minimise impact;
c. Downtime caused by:

- Failures in Briscoe's infrastructure, network, or connectivity;
- FIRS platform unavailability or third-party dependency failures;
- Incorrect or corrupted data supplied by Briscoe;
- Force Majeure events (see Section 15).

7.3 **Scheduled Maintenance**

a. WestMetro may schedule routine maintenance, preferably outside core Business Hours, and will notify Briscoe of such windows.
b. Where maintenance could significantly impact operations, WestMetro will coordinate timing with Briscoe's nominated contact.

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8. Incident Management & Support

8.1 **Support Hours**

- Standard support is provided **during Business Hours**.
- Extended or 24/7 support (if required) may be provided under separate commercial terms.

8.2 **Incident Severity Levels**

Incidents shall be classified as follows:

- **P1 – Critical:** Production system down, no workaround, invoices cannot be processed.
- **P2 – High:** Major functionality impaired, business significantly impacted, but partial processing possible.
- **P3 – Medium:** Non-critical functionality issue, workaround exists; moderate or limited impact on day-to-day operations.
- **P4 – Low:** Minor issues, cosmetic defects, general queries, or change requests.

8.3 **Response and Target Resolution Times**
(Indicative targets, not liquidated damages)

- **P1 – Critical**
  - Initial response: within **2 Business Hours**
  - Target resolution or stable workaround: within **8 Business Hours**
- **P2 – High**
  - Initial response: within **4 Business Hours**
  - Target resolution or workaround: within **2 Business Days**
- **P3 – Medium**

    - Initial response: within **1 Business Day**
    - Target resolution: within **5 Business Days**
- **P4 – Low**
    - Initial response: within **2 Business Days**
    - Target resolution: to be planned in future release cycles or minor updates.

8.4 **Incident Logging**

Briscoe shall log incidents through the agreed channels (e.g., ticketing system, support email, or portal) and provide sufficient details including:

- Description of the issue;
- Screenshots and/or sample files where relevant;
- Environment details (test/production);
- Steps to reproduce the problem.

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9. Client Responsibilities

Briscoe agrees to:

a. Designate **one or more key contacts** for technical and business coordination.
b. Provide timely access to relevant teams, systems, and documentation needed for Data Readiness and Enablement.
c. Ensure that all data submitted via the Middleware is accurate, complete, and lawful.
d. Maintain its own internal controls, approvals, and audit processes over invoice data and tax reporting.
e. Comply with any reasonable security recommendations provided by WestMetro.

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10. Data, Security, and Compliance

10.1 **Data Ownership**

- All invoice and related business data processed by the Middleware remains the **exclusive property of Briscoe**.
- WestMetro shall not use such data for any purpose other than providing the services under this SLA and any associated agreements.

10.2 **Confidentiality**

- Both Parties shall keep confidential any non-public information obtained from the other Party in connection with this SLA, and shall use such information solely for the purposes of fulfilling their obligations hereunder.
- Confidentiality obligations shall survive termination of this SLA.

10.3 **Security**

- WestMetro shall use reasonable commercial efforts to ensure that the Middleware adheres to good security practices (e.g., secure coding, access controls within the application).
- Briscoe shall ensure that the **hosting environment, OS hardening, firewalls, and access controls** around the Middleware follow its own security policies and industry best practices.

10.4 **Regulatory Compliance**

- WestMetro shall endeavor to keep the Middleware updated with **published FIRS technical specifications** applicable to the scope of the Middleware Standard.
- Briscoe remains responsible for **overall tax compliance**, including correctness of invoice data, timely filings, and internal governance.

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11. Changes and Upgrades

11.1 **Regulatory Changes**

Where FIRS introduces new mandatory requirements that directly affect the Middleware:

- WestMetro will assess impact and, where within the scope of Middleware Standard, implement necessary adjustments within a reasonable timeframe.
- Material scope changes or bespoke adaptations may be subject to additional commercial terms.

11.2 **Functional Enhancements**

Feature enhancements or customisations not originally included in Middleware Standard shall be handled under a **separate change request and commercial agreement**.

11.3 **Versioning and Release Management**

WestMetro will:

- Provide release notes summarising key changes;
- Coordinate release planning with Briscoe's technical team;
- Support non-production testing (UAT) before changes are promoted to production.

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12. Service Credits (Optional)

> *This section can be activated or left dormant depending on the Parties' negotiation stance.*

12.1 The Parties may agree on service credits for **material, sustained failure** to meet Availability targets, provided that:

- Such failures are attributable to the Middleware application layer and not to Briscoe's infrastructure, FIRS, or other third-party services.
- The financial value of any service credit in a given month shall **not exceed a defined percentage (e.g., 10%) of that month's service fee**.

12.2 Service credits, if any, shall be applied as a discount on future invoices and shall be Briscoe's **sole and exclusive remedy** for service level failures, subject to Section 13.

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13. Warranties and Limitation of Liability

13.1 **Warranties**

WestMetro warrants that:

a. It has the right and authority to provide the Middleware and services described in this SLA.
b. The Middleware, when used in accordance with documentation and this SLA, will perform substantially as described.

13.2 **Disclaimer**

Except as expressly set out in this SLA and any related contracts:

- The Middleware and services are provided on an "**as is**" and "**as available**" basis;
- WestMetro **does not guarantee** uninterrupted or error-free operation, especially in relation to third-party dependency failures (e.g., FIRS downtime).

13.3 **Limitation of Liability**

To the maximum extent permitted by law:

a. WestMetro's total aggregate liability arising out of or in connection with this SLA (whether in contract, tort, or otherwise) shall be limited to **the total fees paid by Briscoe to WestMetro under the applicable Agreement in the preceding twelve (12) months**.
b. WestMetro shall **not be liable** for:

- Loss of profits, revenue, goodwill, or anticipated savings;
- Indirect, incidental, consequential, or punitive damages;
- Any penalties, interest, or fines imposed by tax authorities arising from inaccurate or incomplete data supplied by Briscoe or delays outside WestMetro's control.

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14. Term and Termination

14.1 **Term**

This SLA shall commence on the **Effective Date** and shall continue for the duration of the master agreement, subscription, or licence agreement between the Parties, unless terminated earlier in accordance with this section.

14.2 **Termination for Cause**

Either Party may terminate this SLA (and associated services) for material breach if:

- The other Party fails to remedy a material breach within **thirty (30) days** of receiving written notice describing the breach.

  14.3 **Effect of Termination**

Upon termination:

- WestMetro will cease providing services under this SLA;
- Briscoe shall pay all outstanding fees due up to the effective date of termination;
- Each Party shall return or destroy (on request) any Confidential Information belonging to the other Party, except where retention is required by law or internal compliance policies.

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15. Force Majeure

Neither Party shall be liable for any failure or delay in performing its obligations under this SLA if such failure or delay is caused by events beyond its reasonable control, including but not limited to natural disasters, war, riots, strikes, government actions, or prolonged failures of third-party networks or services, provided that the affected Party:

- Notifies the other Party promptly; and
- Uses reasonable efforts to mitigate the impact and resume performance.

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16. Dispute Resolution and Governing Law

16.1 The Parties shall attempt in good faith to resolve any dispute arising out of or in connection with this SLA through negotiation between senior representatives.

16.2 If a dispute cannot be resolved amicably within **thirty (30) days**, the Parties may refer the matter to **mediation or arbitration** under an agreed set of rules.

16.3 This SLA shall be governed by and construed in accordance with the **laws of the Federal Republic of Nigeria**.

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17. General Provisions

17.1 This SLA forms part of, and is subject to, the wider **master agreement, proposal, or work order** between the Parties. In the event of conflict, the master agreement / signed commercial contract shall prevail.

17.2 Any amendment to this SLA must be in writing and signed by authorised representatives of both Parties.

17.3 If any provision of this SLA is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

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18. Signatures

IN WITNESS WHEREOF, the Parties hereto have caused this SLA to be executed by their duly authorised representatives as of the **Effective Date: ____**.

For WestMetro Limited

Name: ___

Title: ___

Signature: ___

Date: ___

For RT Briscoe Nigeria Plc

Name: ___

Title: ___

Signature: ___

Date: ___